TGPSC Group I | Paper III | Unit II | Topic 1

Evolution of Indian Constitution: Drafting Committee, Constitutional Philosophy, Preamble, Salient Features, Basic Structure and Amendments

Status: Cycle112 coherent integrated research draft — **NOT academically approved**. Updated 30 October 2026; original 23 October draft preserved separately. All practice questions below are **original**, not authenticated TGPSC previous-year questions. Historical facts and legal propositions are mapped to sources at the end; verify the controlling text and later judgments before treating this as a final exam reference.

1. Exact syllabus and syllabus map

Notification No. 02/2024, Paper III, II. Constitution of India, item 1: “Evolution of Indian Constitution: Role of the Drafting Committee; Constitutional Philosophy and Preamble; Salient features & Basic Structure; Amendments.”

Official syllabus clause	Substantive treatment in this chapter	Exam focus
Evolution of Indian Constitution	Colonial legal trajectory; nationalist demands; Cabinet Mission; Assembly design	Distinguish institutional continuity from democratic rupture
Role of the Drafting Committee	B. N. Rau; committee formation, membership, deliberation and limits	Avoid attributing all decisions to one person
Constitutional Philosophy and Preamble	Popular sovereignty; justice, liberty, equality, fraternity; secularism and democracy	Preamble as interpretive guide, not free-standing power
Salient features	Written and supreme Constitution; parliamentary federalism; rights/DPSP; independent courts; representation	Apply to Telangana statehood and Union–State disputes
Basic Structure	Kesavananda; later judicial development; democratic justification and objections	Distinguish amendment from constitutional destruction
Amendments	Article 368, ratification, landmark amendments, ordinary-law route	Procedural thresholds, limits and case examples

2. Topic summary: argument in one view

India's Constitution is simultaneously an outcome of colonial institutional experience, an anti-colonial demand for self-government and a transformative social charter. The Government of India Act, 1935 supplied much administrative scaffolding, but the Constitution displaced imperial sovereignty with popular sovereignty, universal adult franchise, enforceable fundamental rights, parliamentary accountability and an independent judiciary. The Constituent Assembly—not the Drafting Committee alone—made the final political choices; the Committee under B. R. Ambedkar translated committee decisions and debates into legal text, aided by Constitutional Adviser B. N. Rau. The Preamble announces the moral destination: justice, liberty, equality and fraternity within a sovereign democratic republic; later amendments added the express words socialist, secular and integrity. The Constitution combines federal division of powers with a comparatively strong Union, judicially enforceable rights with non-justiciable Directive Principles, and flexibility with entrenchment. Article 368 allows constitutional change through prescribed majorities and, for specified federal subjects, ratification by at least half the States; the basic-structure doctrine prevents destruction of the constitutional identity even through procedurally valid amendments. Telangana's creation by the Andhra Pradesh Reorganisation Act, 2014 demonstrates an important distinction: reorganisation under Articles 3 and 4 is accomplished by ordinary parliamentary law and is not an Article 368 amendment. The best mains answers explain why an institution or rule exists, identify its legal basis, trace a concrete dispute and weigh the costs of alternative designs.

3. Standalone quick revision — 30 examination anchors

- **1773 Regulating Act:** first important parliamentary intervention in East India Company governance; Governor-General of Bengal and a Supreme Court at Calcutta followed.
- **1784 Pitt's India Act:** strengthened British governmental supervision of Company political affairs through a Board of Control.
- **1833 Charter Act:** Governor-General of Bengal became Governor-General of India; centralised law-making, without creating Indian democracy.
- **1858 Government of India Act:** Company rule ended; authority transferred to the British Crown.
- **1861 Indian Councils Act:** limited legislative association; executive dominance continued.
- **1892 Indian Councils Act:** enlarged councils and limited budget discussion; not responsible government.
- **1909 Morley–Minto reforms:** expanded councils and introduced separate electorates for Muslims.
- **1919 Government of India Act:** dyarchy in provinces; central bicameral legislature, restricted franchise.
- **1935 Government of India Act:** provincial autonomy and three legislative lists; proposed federation did not operate as envisaged.
- **1946 Cabinet Mission Plan:** scheme under which Constituent Assembly was formed, not a universal-adult-franchise election.
- **9 December 1946:** Assembly first met; Sachchidananda Sinha temporary chairman.
- **11 December 1946:** Rajendra Prasad elected Assembly President.
- **13 December 1946 / 22 January 1947:** Objectives Resolution moved / adopted.
- **29 August 1947:** seven-member Drafting Committee appointed; Ambedkar became chairman.
- **B. N. Rau:** Constitutional Adviser, prepared an initial working draft; not a member of the seven-member Drafting Committee.
- **26 November 1949:** Constitution adopted; **26 January 1950:** principal commencement date.
- **Original Constitution:** 395 Articles, 22 Parts and 8 Schedules at commencement; do not present these as today's counts.
- **Preamble:** sovereign, socialist, secular, democratic republic; justice, liberty, equality, fraternity.

- **42nd Amendment (1976):** added socialist, secular and integrity to Preamble.
- **Article 1:** India, that is Bharat, is a Union of States.
- **Article 3:** Parliament may form new States or alter boundaries after constitutional procedure; State legislature's views are not a veto.
- **Article 4:** Article 3-related schedule changes are not Article 368 amendments.
- **Articles 12–35:** Fundamental Rights; **Articles 36–51:** Directive Principles; **Article 51A:** Fundamental Duties.
- **Article 32:** Supreme Court remedies for Fundamental Rights; **Article 226:** broader High Court writ jurisdiction.
- **Article 368:** constitutional amendment procedure; some matters additionally require ratification by at least half of States.
- **Shankari Prasad (1951):** early broad view of Parliament's amending power.
- **Golaknath (1967):** restricted amendments to Fundamental Rights; subsequently displaced by Kesavananda's approach.
- **Kesavananda Bharati (1973):** 13-judge bench, 7–6 basic-structure limit on amending power.
- **Minerva Mills (1980):** limited amending power and harmony of Fundamental Rights/DPSP are central to constitutional identity.
- **2026 legislative distinction:** the proposed 131st Amendment Bill failed in Lok Sabha on 17 April 2026; a defeated Bill is not an enacted amendment.

4. Detailed textbook-grade notes

Concept A. Colonial constitutional evolution: inherited machinery versus democratic sovereignty

Background: the colonial state was a constitutional laboratory, not a democracy

The Constitution did not emerge from a single event in 1949. Colonial enactments gradually developed offices, courts, legislative procedures, public-service systems and centre–province relations that independent India later retained, modified or rejected. This history matters because a familiar institutional form can serve different political purposes. A district collector under the Raj was an instrument of imperial administration; a collector under the Republic is constitutionally subject to elected governments, judicial review, statutory rights and public accountability. Similarly, the 1935 Act supplied administrative techniques without supplying the Constitution's democratic legitimacy. The analytical task is to separate **continuity of machinery** from **change in the source and purpose of power**.

The Regulating Act of 1773 responded to Company misgovernment by placing Bengal's administration under a Governor-General and council and providing for a Supreme Court at Calcutta. Pitt's India Act, 1784 established a dual arrangement of Company administration and British governmental supervision. The Charter Act of 1833 consolidated legislative centralisation and renamed the Governor-General of Bengal as Governor-General of India. The 1858 Act ended East India Company rule after the revolt of 1857, transferring governance to the Crown. None of these measures recognised sovereignty of the Indian people; their governing question was how imperial power could be supervised, coordinated and defended.

Councils, representation and the problem of accountability

The Indian Councils Acts of 1861 and 1892 modestly enlarged consultation, but the executive remained substantially unanswerable to Indian representatives. The 1909 Morley–Minto reforms expanded council membership and introduced separate Muslim electorates, institutionalising a form of communal political representation. Supporters described separate electorates as minority safeguards; critics argued that they encouraged communities to bargain as separate political blocs and strengthened colonial divide-and-rule practices. A serious answer should not pretend that all minority protection is inherently communal: the constitutional question is which design protects vulnerable groups while sustaining equal citizenship and common political institutions.

The Government of India Act, 1919 introduced **dyarchy in provinces**: transferred subjects were handled by ministers responsible to legislatures, while reserved subjects remained under governors and executive councillors. The arrangement exposed the tension between ministerial responsibility and executive veto. Restricted property- and qualification-based franchise meant that even representative institutions remained socially narrow. Nationalist criticism therefore targeted both the quantum of self-government and the exclusion of most adults from political participation.

The Government of India Act, 1935 was the largest pre-independence constitutional framework. It provided provincial autonomy, envisaged an all-India federation and distributed subjects into federal, provincial and concurrent lists. The proposed federation never operated in its intended form because the requisite princely-state accessions did not materialise. Provincial ministries nevertheless acquired significant experience in legislation and administration after the 1937 elections. The 1935 Act influenced the Constitution's federal lists, public-service institutions, emergency design and gubernatorial arrangements. But it is misleading to say the Constitution simply copied the Act: adult franchise, enforceable rights, a republican head of state and accountability to the people mark a fundamental break.

Nationalist alternatives and the route to an elected constitution-making body

Indian political thought offered alternatives to piecemeal imperial concessions. The Nehru Report of 1928 proposed a dominion-status constitutional scheme with rights protections; debates over minority representation exposed unresolved questions about the political community. The 1931 Karachi Resolution linked civil liberties with socio-economic commitments, foreshadowing the later combination of Fundamental Rights and Directive Principles. Nationalists increasingly insisted that Indians, rather than Westminster, should make India's constitutional rules. The August Offer of 1940 and Cripps proposals of 1942 acknowledged versions of post-war constitution-making but failed to produce agreement over authority and unity.

The Cabinet Mission Plan of 1946 created the practical route to the Constituent Assembly. Its original scheme tried to reconcile a common Indian union with provincial groupings and substantial provincial autonomy. Partition transformed that context: the Assembly had to establish a workable Union, integrate princely States and confront mass displacement while drafting rules for a plural society. The institutional choices of 1946–49 were therefore responses to real security, integration and social-justice problems, not abstract borrowing exercises.

Evaluation and Telangana application

The colonial inheritance produced a capable but centralised administrative state. Retaining district administration, all-India services and central legislative tools could help build capacity across a vast new Republic; the same choices could perpetuate hierarchy, secrecy and a bias toward the executive. Telangana offers a concrete lens: the constitutional power to reorganise States and the continuing role of centrally created services illustrate the interaction of inherited administrative centralisation with democratic regional demands. A high-quality answer should specify whether it is discussing a **colonial Act**, a **Constitutional Article**, or a **post-independence statute**, because each has a different source of legal authority. [S1, S2, S3]

Concept B. Constituent Assembly: authority, representativeness and decision-making

Origin and composition

The Constituent Assembly first met on 9 December 1946 under the Cabinet Mission framework. It was not elected by universal adult suffrage: members from British Indian provinces were elected indirectly by provincial legislative assemblies, while princely States had their own arrangements for representation. The initial planned strength was 389; Partition reduced the effective size of the body that framed independent India's Constitution to about 299. The indirect election and limited franchise create a genuine democratic objection. Yet representativeness cannot be judged by electoral origin alone: one must also examine the range of political positions voiced, the openness of debate, the publicity of draft proposals and the democratic institutions established for the future.

Rajendra Prasad became permanent President of the Assembly on 11 December 1946. Jawaharlal Nehru moved the Objectives Resolution on 13 December 1946; it was adopted on 22 January 1947. This Resolution committed the Assembly to an independent sovereign republic, authority derived from the people, justice, equality, freedom and safeguards for minorities and disadvantaged groups. The eventual Preamble drew upon this moral programme but was not a verbatim reproduction. The Assembly had to decide how political freedom would coexist with caste inequality, economic deprivation, religious diversity and the territorial anxieties intensified by Partition.

Committee system and the difference between proposals and final law

The Assembly divided specialised work among committees. Nehru chaired the Union Powers Committee and Union Constitution Committee. Vallabhbhai Patel chaired the Provincial Constitution Committee and the Advisory Committee on Fundamental Rights, Minorities and Tribal and Excluded Areas. The latter included specialist subcommittees, such as the Fundamental Rights Sub-Committee under J. B. Kripalani. Committee reports did not automatically become constitutional text. They were discussed, altered or rejected by the full Assembly, then translated into draft articles and debated again. This sequence is essential to evaluating the role of the Drafting Committee: neither an expert committee nor its chair possessed a free-standing mandate to impose a Constitution.

Deliberation, dissent and compromise

Debates addressed whether the Union should be weak or strong, whether minority safeguards should use separate electorates, how property and land reform should coexist with individual rights, and whether social and economic commitments should be judicially enforceable. The Assembly ultimately rejected separate communal electorates while retaining certain forms of affirmative representation. It adopted enforceable civil-political rights and non-justiciable Directive Principles as complementary constitutional techniques. Members including Hansa Mehta, Dakshayani Velayudhan, Jaipal Singh Munda and others raised concerns about gender equality, caste hierarchy, tribal self-government and substantive democracy; it is inaccurate to portray the proceedings as the work of a single leader or homogeneous elite.

Some compromises had costs. The strong Centre was justified by fears of fragmentation, external threat and the immediate experience of Partition; it also created enduring Union–State tensions. Administrative continuity could secure order, but it also left colonial policing and bureaucratic habits requiring later reform. The Constitution's original property-rights settlement generated conflicts with redistributive land reform, leading to early amendments and litigation. These are examples of constitutionalism as institutional conflict management rather than an assumption that every problem was settled in 1949.

Democratic legitimacy: a balanced assessment

A fair assessment acknowledges the Assembly's restricted electoral base and the absence of direct universal-franchise election. It also recognises that the adopted Constitution introduced universal adult franchise at the Republic's birth, a radical move in a poor, unequal and largely non-literate society. Public discussion, clause-by-clause scrutiny and a range of ideological disagreements strengthened deliberative legitimacy. The most defensible position is neither to dismiss the Assembly as illegitimate nor to treat its decisions as beyond criticism. Its legitimacy rested partly on creating a framework through which later generations could contest and revise constitutional choices.

Telangana illustration

The subsequent creation of Telangana in 2014 shows that the territorial arrangement adopted by the Assembly was deliberately adaptable. Article 3 provides Parliament with power to reorganise States, while requiring a presidential recommendation and referral to the affected State legislature for its views. The State legislature does not hold a constitutional veto. This can accommodate regional identity and administrative claims, but critics worry that the procedure underprotects the autonomy of existing States. The debate reflects the original Assembly's balance between a durable Union and changing territorial demands. [S1, S2, S4]

Concept C. The Drafting Committee: legal craftsmanship and its institutional limits

Formation, membership and preparatory material

On 29 August 1947 the Constituent Assembly appointed a seven-member Drafting Committee. Its original members were B. R. Ambedkar, Alladi Krishnaswami Ayyar, N. Gopalaswami Ayyangar, K. M. Munshi, Syed Mohammad Saadulla, B. L. Mitter and D. P. Khaitan. Ambedkar chaired the Committee. Mitter was replaced by N. Madhava Rau; following Khaitan's death, T. T. Krishnamachari joined. The exact names matter in objective examinations, but the larger point is institutional: a committee of legal specialists converted political choices into enforceable and administrable provisions.

Constitutional Adviser **B. N. Rau** gathered comparative material and prepared an initial draft for the Assembly's office. He was not a member of the Drafting Committee. Treating Rau, Ambedkar and the Assembly as interchangeable obscures their distinct contributions. Rau offered comparative and drafting foundations; the Drafting Committee revised and systematised; the full Assembly retained the authority to accept, alter or reject the text. The official debate of 29 August 1947 is particularly useful because the resolution itself described the Committee's function as scrutinising a draft based on decisions already taken in the Assembly.

What constitutional drafting actually required

The Committee did far more than edit grammar. It had to connect principles that could pull in different directions: individual liberty and public order; equality and affirmative action; elected government and administrative continuity; national integration and provincial autonomy; parliamentary lawmaking and judicial review. A Constitution cannot merely promise rights; it must identify duty-bearers, legal procedures, exceptions, institutional jurisdictions and remedies. For example, a right to equality requires not only a statement of principle but a workable relationship between non-discrimination, public employment, reservations and judicial scrutiny. Federalism requires lists of legislative subjects, rules for conflicting laws, fiscal arrangements and emergency procedures.

The Committee's work also involved anticipating litigation. Broad concepts such as liberty, equality and reasonableness need text capable of guiding courts without eliminating legislative choice. Over-detailed constitutional drafting can reduce adaptability; excessive generality can transfer difficult decisions to judges. The resulting Indian Constitution is relatively detailed because the framers sought to stabilise a complex transition and pre-empt some institutional disputes. Its length is therefore both a governance resource and a source of rigidity or complexity, depending on the issue.

Ambedkar's distinctive contribution

Ambedkar's importance lies in legal reasoning, management of the drafting process and insistence that formal political equality would be hollow without social democracy. In his closing address of 25 November 1949, he warned of contradictions between political equality and continuing social-economic inequality, and emphasised constitutional methods and safeguards against personality cults. These were not decorative speeches: they identified risks to constitutional survival that legislation alone could not solve. A constitutional order depends on political parties, officials, judges and citizens respecting restraints even when formal text permits aggressive conduct.

Ambedkar also defended an institutional design that could operate as federal in ordinary times yet give the Union substantial authority in emergencies. His position should not be reduced to an uncritical endorsement of centralisation; he recognised the need for a working constitutional order capable of responding to instability. Likewise, the Assembly did not simply accept every committee preference. Debates over minority rights, executive power and the role of the judiciary continued after draft publication.

Criticism, accountability and a method for exam answers

One criticism is that an expert committee might have insulated political decisions from democratic scrutiny. The 29 August debate records precisely this anxiety: members demanded that the Assembly remain free to revisit both text and principle. The counterargument is that expert legal drafting was indispensable to turn hundreds of political decisions into a coherent constitutional instrument. The correct evaluation separates **expertise in formulating legal language** from **authority to make constitutional choices**. The Committee was indispensable but subordinate to the Assembly's deliberative process.

For a mains answer, describe four stages: committee reports and Assembly principles; Rau's preparatory draft; Drafting Committee's revised legal text; and Assembly's clause-by-clause deliberation and adoption. This avoids the two opposite errors of calling Ambedkar the sole author or denying his exceptional contribution. Telangana's constitutional administration illustrates why this distinction remains practical: lawyers, officials and expert commissions can recommend institutional arrangements, but the legally empowered body must take the final decision under the Constitution. [S1, S3, S4]

Concept D. Constitutional philosophy and the Preamble: ends, means and interpretation

Popular sovereignty and the character of the Republic

The Preamble begins with the people as the source of constitutional authority. This is the sharpest break with colonial governance: governmental power is no longer justified by imperial statute or dynastic title, but by a Constitution enacted in the people's name. **Sovereign** means the Republic possesses independent constitutional authority, subject to obligations it voluntarily undertakes under international law; it does not imply freedom from every international commitment. **Democratic** refers to government ultimately answerable to the people through representative institutions, political competition and rights. **Republic** means the head of state is not a hereditary monarch. These terms are related but not synonymous: an elected head of state does not by itself establish meaningful democracy.

The Preamble's moral vocabulary is deliberately interconnected. **Justice** is social, economic and political; social justice confronts entrenched caste, gender and other hierarchies, economic justice addresses material opportunity and deprivation, and political justice requires effective equal citizenship. **Liberty** includes thought, expression, belief, faith and worship. **Equality** concerns status and opportunity rather than an assurance that all outcomes will be identical. **Fraternity** requires a civic bond compatible with individual dignity and national unity. A policy may advance one value while putting pressure on another; constitutional reasoning explains how institutions mediate that conflict.

Social transformation versus restrained government

The Constitution is often described as transformative because it aims to change inherited social relations, not merely restrain the State. Article 17 abolishes untouchability; equality guarantees and affirmative-action provisions address exclusion; Directive Principles orient public action toward welfare, education, health and material justice. At the same time, fundamental rights constrain majoritarian and administrative overreach. The tension is productive when institutions make trade-offs transparently and reviewably. A welfare policy that improves access but arbitrarily excludes eligible people may offend equality; an absolute insistence on formal sameness can ignore historical disadvantage. Exam answers should distinguish **formal equality** from **substantive equality** and show how both appear in constitutional practice.

The terms **socialist**, **secular** and **integrity** were inserted in the Preamble by the 42nd Amendment in 1976. Their insertion date is important, but it does not mean that before 1976 the Constitution lacked all social-justice or religious-freedom commitments. Equality, freedom of religion, Directive Principles and the non-theocratic structure were already part of the constitutional settlement. Indian secularism is not adequately described as either hostility to religion or automatic equal funding of all religions. It combines individual freedom of conscience, non-discrimination and a State capable of reforming secular aspects of religious institutions within constitutional limits. Disputes over personal law, educational institutions and religious freedom show why the concept remains contested.

Is the Preamble enforceable law?

The Preamble forms part of the Constitution and is an important interpretive guide, as recognised in the basic-structure jurisprudence. It is not an independent source of legislative power and does not by itself create a remedy that overrides the operative Articles. Its value is especially visible when courts must choose among plausible interpretations of ambiguous constitutional provisions. The Preamble cannot be invoked to ignore explicit constitutional text; equally, the text should not be read as if the Preamble's commitments were meaningless decoration.

The objectives of liberty and social justice sometimes generate competing accounts of judicial review. One approach emphasises restraint and the democratic legitimacy of elected legislators. Another argues that courts must enforce constitutional morality against popular majorities when rights and institutional checks are threatened. Both have risks: excessive judicial control can displace democratic choice, while excessive deference can hollow out rights. A disciplined answer identifies the constitutional provision, the actual rights affected and the institutional competence of the decision-maker instead of simply declaring one branch superior.

Telangana illustrations and contemporary relevance

Telangana's statehood debates invoke dignity, political voice, regional equality and equitable access to public resources. These are consonant with the Preamble's justice and democratic-participation values, but statehood itself was legally effected through Articles 3 and 4 and the 2014 Reorganisation Act. The distinction between **moral justification** and **legal mechanism** is exam-critical. Similarly, policies for disadvantaged communities must be evaluated for real access and procedural fairness, not solely by their stated social-justice aims. [S2, S5, S6]

Concept E. Salient features: a negotiated constitutional architecture

Written supremacy, republicanism and parliamentary accountability

India has a written, supreme Constitution that allocates governmental powers and provides standards for their review. Parliamentary government places the effective executive in a Council of Ministers collectively responsible to the directly elected Lok Sabha at Union level and to the Legislative Assembly at State level. The President and Governors are constitutional heads with specified functions, while ministers normally exercise political executive authority. This differs from a presidential system in which executive tenure is independently fixed. Parliamentary accountability enables legislative questioning and loss-of-confidence mechanisms; its weakness is that a disciplined majority may dominate the legislature and reduce scrutiny unless committees, opposition rights and public transparency function well.

The Constitution establishes a single citizenship, universal adult franchise and an independent Election Commission for elections within its constitutional mandate. Universal franchise was adopted from the start rather than introduced only after a long period of property-based voting. That choice converted a deeply unequal society into a political community of equal adult voters, although unequal wealth, information and social power still affect actual political influence. The distinction between **one person, one vote** and **equal effective voice** is useful in questions about constitutional democracy.

Federalism with a strong Union

Article 1 describes India as a Union of States. Legislative powers are divided through the Seventh Schedule's Union, State and Concurrent Lists; Article 246 structures their distribution. Article 254 addresses inconsistency between Union and State laws on concurrent subjects, subject to its conditions and exceptions. Fiscal transfers, centrally sponsored programmes, the Finance Commission and intergovernmental forums shape practical autonomy beyond the formal lists. The Union has significant powers in emergencies and in certain State-related matters. Thus India is federal in the distribution of constitutionally recognised powers but not a compact of sovereign States with a unilateral right to secede.

The practical merits of this model include common markets, national rights protections and coordination during disasters or economic shocks. Its risks include central overreach, financial dependency and diminished space for local experimentation. The correct response is not to classify India as wholly unitary or perfectly symmetric federalism. One must ask which subject is involved, which Article governs it and what procedural safeguards apply. State autonomy varies by subject and institutional setting.

Rights, Directive Principles and constitutional remedies

Part III provides enforceable Fundamental Rights, including equality, freedoms, protection of life and personal liberty, religious freedom and constitutional remedies. Part IV provides Directive Principles that are not enforceable by courts as such but are fundamental in governance and guide lawmaking. Part IVA sets out Fundamental Duties. The distinction is not rights versus welfare: rights may require positive state action, and welfare measures must respect rights. Article 32 empowers Supreme Court remedies for Fundamental Rights, while Article 226 permits High Court writs for Fundamental Rights and for other purposes. The High Courts' broader writ jurisdiction is a frequent objective-exam distinction.

Independent judicial review prevents ordinary legislation and executive action from overriding constitutional limits. It also creates a tension with parliamentary supremacy: elected institutions make policy, but courts determine whether the Constitution permits particular methods. The basic-structure doctrine adds a limit even to formal constitutional amendments. Judicial independence must therefore coexist with judicial accountability, transparent reasoning and institutional restraint.

Local self-government and social inclusion

The 73rd and 74th Amendments constitutionalised the basic framework of rural and urban local government through Parts IX and IXA and the Eleventh and Twelfth Schedules. They created a more durable institutional basis for local representation, reservations and periodic elections, but actual authority still depends heavily on State laws, funds, functions and functionaries. In Telangana, the functioning of Gram Panchayats and urban local bodies is therefore a constitutional governance question as well as a State administrative question. Local elections without staff, predictable funds or accountable service delivery do not complete decentralisation.

Telangana statehood as a constitutional stress test

Article 3 permits Parliament to create a new State, alter boundaries or change a State's name through an ordinary law after the specified process. The President refers the proposal to the affected State legislature for views, but those views are not binding. Article 4 permits incidental changes to the First and Fourth Schedules without treating the Act as an Article 368 constitutional amendment. The Andhra Pradesh Reorganisation Act, 2014 created Telangana and dealt with representation, institutions, assets and transition arrangements. This shows both constitutional adaptability and the potential controversy when an affected State's elected legislature opposes reorganisation. In an exam, cite the Act and Articles rather than claiming Telangana was created by a constitutional amendment. [S2, S7]

Concept F. Basic structure: the constitutional identity that amendment cannot destroy

The question: can an amendment abolish constitutionalism?

Article 368 confers power to amend the Constitution, but what if a formally valid amendment abolishes competitive elections, judicial review or the ability of future Parliaments to amend? The basic-structure doctrine answers that Parliament's amending power is **constituted and limited**, not the unlimited original authority of a sovereign constitution-making assembly. The doctrine is not a closed list written in one Article. It is a judicially developed limitation derived from the nature and architecture of the Constitution. This distinction matters: an amendment can substantially change institutions without necessarily destroying a basic feature, but a change that extinguishes the feature's essential identity is impermissible.

Early cases framed the problem differently. **Shankari Prasad v. Union of India (1951)** accepted that constitutional amendments could affect Fundamental Rights and distinguished an Article 368 amendment from ordinary law under Article 13. **I. C. Golaknath v. State of Punjab (1967)** restricted Parliament's power to amend Fundamental Rights, intensifying conflict over land reform and redistribution. The **24th Amendment (1971)** affirmed Parliament's constituent power under Article 368 and made presidential assent mandatory. These developments led to the landmark challenge in **Kesavananda Bharati v. State of Kerala (24 April 1973)**.

Kesavananda: power to amend, not power to destroy

A 13-judge bench decided Kesavananda by a narrow 7–6 majority on the core limitation. The Court accepted that Parliament could amend any part of the Constitution, including Fundamental Rights, but not alter or destroy its basic structure. This rejected both extremes: Fundamental Rights were not absolutely unamendable, and parliamentary power was not limitless. The opinions did not provide one exhaustive catalogue. Frequently recognised features include supremacy of the Constitution, republican and democratic government, secularism, federalism, separation of powers, judicial review, rule of law and the independence of the judiciary. Their precise scope depends on later judgments and the amendment under review.

The distinction between an **ordinary policy choice** and a **structural injury** is critical. Parliament may change electoral procedures, subject to constitutional constraints; it cannot constitutionally eliminate meaningful free and fair elections. It may adjust court jurisdiction in lawful ways; it cannot dismantle judicial review in a manner

that destroys the constitutional scheme. Not every adverse effect on a right is a basic-structure violation; the doctrine asks whether a foundational feature has been damaged at the level of constitutional identity.

Development after 1973

In **Indira Nehru Gandhi v. Raj Narain (1975)** the Court applied basic-structure reasoning to provisions seeking to insulate a high-level election dispute from ordinary judicial scrutiny. In **Minerva Mills v. Union of India (1980)** it struck down parts of the 42nd Amendment that attempted to make amending power unlimited and disturb the balance between Fundamental Rights and Directive Principles. The Court emphasised limited amending power and constitutional harmony rather than a simple hierarchy in which one Part defeats the other. In **I. R. Coelho v. State of Tamil Nadu (2007)** the Court held that laws placed in the Ninth Schedule after 24 April 1973 are subject to basic-structure scrutiny through the impact on relevant rights and principles. In the **NJAC case (2015)** the 99th Amendment was invalidated because the majority found that the new judicial appointments architecture impaired judicial independence; critics argued that the decision entrenched insufficiently accountable judicial self-selection. This is a useful example of a contested application rather than a slogan.

Justification and democratic criticism

Defenders argue that without a substantive limit, a transient supermajority could use amendment procedure to remove the very conditions of future democracy. Basic structure protects constitutional continuity, minorities and the institutions that make peaceful political alternation possible. Critics respond that unelected judges lack a democratically enacted textual list of unamendable features, creating uncertainty and potential judicial overreach. They also question whether courts consistently distinguish constitutional essentials from preferred institutional designs. Both perspectives have force. A careful evaluation asks whether a particular ruling protects the constitutional conditions of democracy or merely substitutes judicial policy preference for legislative judgment.

Telangana and federal implications

Federalism is recognised as a basic feature, yet this does not make State boundaries immutable. Article 3 explicitly permits territorial reorganisation; therefore the creation of Telangana does not itself offend federalism. The sharper question is whether procedures and institutional arrangements preserve meaningful State government within the Union. The doctrine does not transform the Article 3 consultation into a State veto. For Telangana mains, connect basic structure to federal distribution of authority, independent courts and representative institutions while distinguishing the constitutional text from normative criticism of how it operates. [S2, S8, S9]

Concept G. Constitutional amendments: flexibility, entrenchment and political bargaining

Article 368: a special lawmaking route

An amendment is a formal change to constitutional text made through a constitutionally prescribed process. Under Article 368, an amendment Bill may be introduced in either House of Parliament. Each House must pass it by a **majority of the total membership of that House** and by **not less than two-thirds of members present and voting**. There is no joint sitting to resolve a deadlock over an Article 368 amendment Bill. Where the proposal concerns specified federal provisions—such as election of the President, the extent of Union and State executive power, certain Supreme Court/High Court provisions, distribution of legislative powers, representation of States in Parliament or Article 368 itself—ratification by legislatures of **not less than half of the States** is additionally required before presentation for presidential assent. The President must give assent to a duly passed amendment Bill.

The phrase 'special majority' is often used loosely. It is not merely two-thirds of those who turn up, because the separate requirement of a majority of the House's **total membership** also applies. Nor does every amendment require State ratification. Conversely, an ordinary parliamentary law that changes the Constitution's First and Fourth Schedules pursuant to Articles 3 and 4 is expressly outside Article 368. Students should learn the constitutional trigger before memorising voting arithmetic.

Three different routes that candidates often confuse

First, many constitutional changes require the Article 368 special majority alone. Second, changes to specified federal provisions require that special majority **plus State ratification**. Third, certain constitutional arrangements are alterable by **ordinary parliamentary law** under an express constitutional authorisation; Articles 3 and 4 on State reorganisation are the clearest Telangana example. Calling all three 'constitutional amendments' without procedural distinction leads to wrong MCQ answers. Also distinguish amendments to constitutional text from court interpretations that change constitutional meaning without rewriting words.

Major amendments and their constitutional significance

The **1st Amendment (1951)** addressed, among other matters, freedom-of-speech restrictions and land-reform protections, showing the early tension between rights and redistribution. The **7th Amendment (1956)** reorganised State categories and related institutions after the States Reorganisation process. The **24th Amendment (1971)** responded to Golaknath by clarifying Article 368's constituent power. The **42nd Amendment (1976)** made extensive changes during the Emergency, including Preamble terminology and attempts to curtail judicial checks; several provisions were later reversed or invalidated. The **44th Amendment (1978)** strengthened certain safeguards following the Emergency and removed the former Fundamental Right to property, replacing it with constitutional protection under Article 300A. The **73rd and 74th Amendments (1992)** supplied constitutional frameworks for panchayats and municipalities. The **86th Amendment (2002)** introduced Article 21A concerning education of children aged six to fourteen. The **101st Amendment (2016)** created the constitutional framework for Goods and Services Tax and the GST Council. The **103rd Amendment (2019)** introduced EWS reservation provisions; the Supreme Court upheld it in **Janhit Abhiyan (2022)** by majority. The **106th Amendment (2023)** provided for reservation of seats for women in Lok Sabha, State Legislative Assemblies and Delhi's Assembly, subject to its census/delimitation-linked implementation mechanism.

2026 current-affairs application: a defeated Bill is not law

In April 2026 the Union government introduced the proposed **Constitution (131st Amendment) Bill, 2026** as part of a package relating to delimitation and implementation of women's legislative reservation. The Bill failed to secure the required constitutional majority in the Lok Sabha on **17 April 2026**. The related proposals were not taken forward. It would be factually wrong to describe the proposal as an enacted 131st Amendment. This episode is valuable because it demonstrates Article 368's special-majority requirement in action: even a government with a substantial ordinary legislative majority may lack the votes needed to alter constitutional fundamentals. Political disagreement concerned the method and timing of delimitation, distribution of representation among States and the implementation path for women's representation; it should not be flattened into a simple pro-women versus anti-women binary.

Amendment versus basic structure: two gates, not one

An amendment must pass a **procedural gate** (Article 368 and any necessary State ratification) and a **substantive gate** (it must not damage the basic structure). Passing by an overwhelming majority cannot save a measure that destroys a basic feature. Equally, a socially desirable proposal that lacks the prescribed majority cannot become constitutional law. This dual control balances democratic change with constitutional continuity. It can be criticised as giving courts substantial final authority, but it also prevents the rules of democratic competition from being abolished by those temporarily holding office.

Telangana applications and policy consequences

The formation of Telangana is the strongest local comparison: the **Andhra Pradesh Reorganisation Act, 2014** was an ordinary parliamentary Act operating under Articles 3 and 4, not a constitutional amendment under Article 368. By contrast, an alteration to constitutionally protected federal powers within Article 368's ratification proviso would require a different process. The **101st Amendment** and GST Council also illustrate how federal financial relations can be reshaped by constitutional agreement, while practical debates continue over State fiscal room and intergovernmental bargaining. A useful administrative lesson is that constitutional flexibility does not mean any policy announcement can override the text: officials must identify the correct legislative competence, procedure and judicial limits before implementation. [S2, S7, S10, S11, S12]

Concept H. Article 368 voting arithmetic and source criticism: April 2026

Two simultaneous tests, not one percentage

Article 368(2) requires a constitutional amendment Bill to pass **separately in each House** by (1) a majority of the **total membership** of that House and (2) at least **two-thirds of those present and voting**. If M denotes total membership and V those present and voting, the required affirmative votes are **max(floor(M/2)+1, ceil(2V/3))**. Abstentions, vacancies and negative votes cannot be treated as interchangeable, because the denominators differ. No joint sitting substitutes for the separate approvals. Specified federal changes also require ratification by legislatures of at least half the States, followed by Presidential assent. The official Constitution supplies these rules [S2, S16].

Worked constitutional arithmetic

Take a hypothetical House with total membership 600 and 480 members present and voting. The first test requires 301 affirmative votes; the second requires 320. A Bill with 310 votes passes the first test but fails the second. The controlling minimum is therefore **320**, not 301 or 400. This example is deliberately hypothetical and should never be presented as an actual parliamentary vote. Even 320 affirmative votes would not remove the ratification requirement if the proposed amendment changed a category listed in the Article 368 proviso, such as the Seventh Schedule Lists or representation of States in Parliament.

The failed 131st Amendment Bill, April 2026

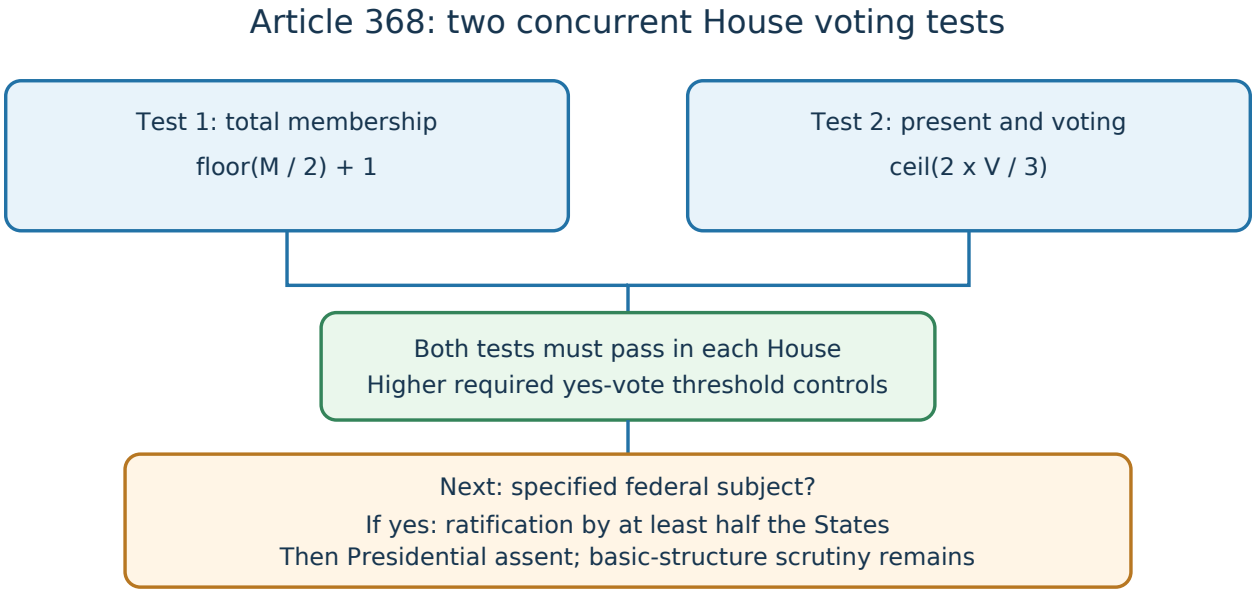
The Constitution (131st Amendment) **Bill**, 2026 failed to pass Lok Sabha on **17 April 2026**; it did not become a 131st Amendment **Act**. News On AIR's 18 April report says 298 votes were in favour and 230 against. Those figures sum to 528, whose two-thirds threshold would be 352. Yet the *same report* also says 489 members were present and gives 326 as the two-thirds threshold. These statements cannot all describe the same division: **298 + 230 is not 489**. The failure of the Bill is corroborated, but the precise division denominator is **not independently authenticated** by the report. A primary parliamentary division record is still required before certifying the arithmetic of that real vote. The related delimitation and Union Territories proposals did not become law merely because they were introduced [S15].

Procedure, rights and the basic-structure limit

Article 13(4) excludes constitutional amendments made under Article 368 from Article 13; this is not a blanket exclusion of basic-structure judicial scrutiny. Article 169 offers a separate ordinary-law route for creating or abolishing a State Legislative Council after a qualifying State Assembly resolution; Article 169(3) expressly excludes that law from Article 368. Article 300A protects property from deprivation except by authority of law, but is outside Part III and is not a Fundamental Right. These distinctions illustrate why an exam answer must identify the specific constitutional route and remedy instead of treating every constitutional change as an Article 368 amendment or every legal entitlement as a Fundamental Right [S2, S16].

Mains answer blueprint and evidence boundary

Start with the legal rule and both voting denominators. Calculate the two thresholds separately, identify the higher one, then discuss State ratification and basic-structure review only where relevant. For an actual legislative vote, distinguish a directly viewed official report from an authenticated parliamentary division record. When a source contains contradictory numbers, state the conflict explicitly rather than inventing a clean tally. A fact-checking limitation is not a failure of the Constitution; it is a limitation of the available evidence.



Original analytical diagram | Source: Article 368(2) | Academic approval pending

5. Visual learning: constitutional processes and comparison tables

Diagram 1. Constitution-making: authority chain

Nationalist demands + colonial institutional experience
|
Cabinet Mission framework (1946)
|
Constituent Assembly debates and committees
|
B. N. Rau's preparatory legal draft
|
Drafting Committee led by B. R. Ambedkar
|
Revised draft -> Assembly clause-by-clause vote
|
Adopted 26 Nov 1949 -> commenced 26 Jan 1950
|
Elected institutions + judicial review + Article 368

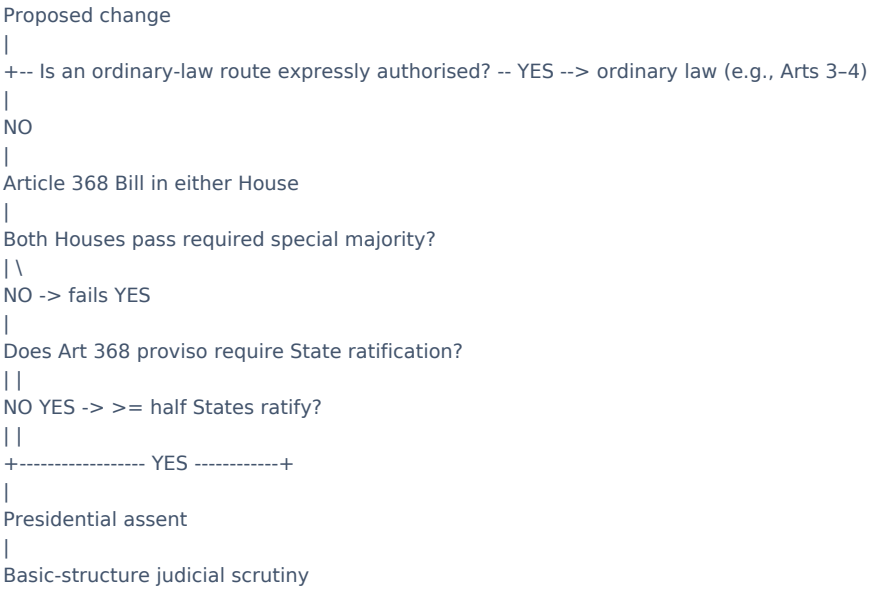
Table A. Sources of constitutional power

Mechanism	Who acts?	Required procedure	Telangana / exam application
Ordinary Union legislation	Parliament	Ordinary legislative process, subject to Constitution	Routine Union laws; not automatically constitutional amendments
State reorganisation, Arts 3–4	Parliament, with Presidential recommendation and referral for State views	Ordinary law after specified consultation	Andhra Pradesh Reorganisation Act, 2014
Article 368 amendment	Both Houses separately	Majority of total membership AND two-thirds of present and voting	Changes to constitutional text
Article 368 federal-provision amendment	Both Houses + State legislatures	Special majority plus ratification by at least half of States	Specified federal structure matters
Judicial constitutional interpretation	Constitutional courts	Decision in a properly brought case	Can change legal meaning, not the printed text by itself

Table B. Constitutional values: rule, conflict and consequence

Value	Constitutional expression	Typical policy tension	Analytical test
Liberty	Fundamental Rights; Preamble	Public order versus dissent	Is restriction lawful, justified and reviewable?
Equality	Arts 14–16 and protective provisions	Formal sameness versus historical disadvantage	Does classification or affirmative measure satisfy constitutional standards?
Justice	Preamble and Directive Principles	Redistribution versus property/economic interests	Are both policy goal and means constitutional?
Democracy	Adult franchise; parliamentary accountability	Majority mandate versus opposition/minority rights	Are competition, information and checks meaningful?
Federalism	Arts 1, 3, 246; Seventh Schedule	National coordination versus State autonomy	Which body has competence, and what safeguards apply?
Judicial independence	Constitutional court architecture	Accountability versus insulation from politics	Does reform preserve independent adjudication?

Diagram 2. Constitutional amendment decision tree



6. Original practice MCQs — not official previous-year questions

Q1. Which enactment ended East India Company rule and transferred governance to the British Crown?
A. Regulating Act 1773 B. Charter Act 1833 C. Government of India Act 1858 D. Indian Councils Act 1892
Answer: C. The 1858 Act followed the 1857 revolt; 1773 and 1833 restructured Company-era government.

Q2. Dyarchy at the provincial level was introduced by which statute?
A. Indian Councils Act 1909 B. Government of India Act 1919 C. Government of India Act 1935 D. Indian Independence Act 1947
Answer: B. The 1919 Act divided provincial subjects into reserved and transferred fields.

Q3. Which statement about the Government of India Act 1935 is accurate?
A. It introduced universal adult franchise B. Its proposed all-India federation operated fully C. It provided provincial autonomy D. It abolished the office of Governor
Answer: C. Provincial autonomy operated, but the envisaged federation did not operate as designed.

Q4. The Constituent Assembly first met on:
A. 9 December 1946 B. 22 January 1947 C. 29 August 1947 D. 26 January 1950
Answer: A. The Objectives Resolution was adopted in January 1947; the Drafting Committee was appointed in August 1947.

Q5. Who was Constitutional Adviser to the Constituent Assembly?
A. B. R. Ambedkar B. B. N. Rau C. Rajendra Prasad D. K. M. Munshi
Answer: B. Rau prepared preparatory material and a draft; Ambedkar chaired the Drafting Committee.

Q6. The Drafting Committee was appointed on:
A. 13 December 1946 B. 15 August 1947 C. 29 August 1947 D. 26 November 1949
Answer: C. The Assembly appointed the seven-member Committee on 29 August 1947.

Q7. Which of the following was NOT one of the original seven Drafting Committee members?
A. D. P. Khaitan B. Syed Mohammad Saadulla C. B. N. Rau D. Alladi Krishnaswami Ayyar
Answer: C. Rau was Constitutional Adviser, not a member of the seven-member Committee.

Q8. The Objectives Resolution was moved by:
A. Vallabhbhai Patel B. Jawaharlal Nehru C. B. R. Ambedkar D. Hansa Mehta
Answer: B. Nehru moved it on 13 December 1946; it was adopted on 22 January 1947.

Q9. Which word was inserted in the Preamble by the 42nd Amendment?
A. Republic B. Liberty C. Secular D. Sovereign
Answer: C. Socialist, secular and integrity were added in 1976; the other terms were already present.

Q10. Which proposition best states the legal role of the Preamble?
A. It alone creates a legislative power B. It overrides every operative Article C. It guides interpretation and forms part of the Constitution D. It is irrelevant to basic structure
Answer: C. It is an interpretive guide, not a free-standing source of power.

Q11. Which Article states that India, that is Bharat, shall be a Union of States?
A. Article 1 B. Article 3 C. Article 14 D. Article 368
Answer: A. Article 3 concerns territorial reorganisation; Article 368 concerns amendments.

Q12. Under Article 3, the views of an affected State legislature are:
A. a binding veto B. constitutionally irrelevant C. sought through the prescribed referral but not binding D. required only after enactment
Answer: C. Referral for views is required under the proviso, but Parliament is not bound to agree.

Q13. The law creating Telangana in 2014 was principally enacted under which constitutional mechanism?
A. Article 368 alone B. Articles 3 and 4 C. Article 32 D. Article 356
Answer: B. Article 4 expressly distinguishes reorganisation-related changes from Article 368 amendments.

Q14. Which constitutional Part contains Directive Principles of State Policy?
A. Part II B. Part III C. Part IV D. Part IVA
Answer: C. Part III contains Fundamental Rights and Part IVA contains Fundamental Duties.

Q15. Which statement about writ jurisdiction is correct?
A. Article 226 is limited to Fundamental Rights alone B. Article 32 applies to all legal disputes C. Article 226 covers Fundamental Rights and other purposes D. High Courts cannot issue writs
Answer: C. High Court writ jurisdiction under Article 226 is broader in subject matter than Article 32.

Q16. Kesavananda Bharati (1973) is best known for holding that:
A. no Fundamental Right can ever be amended B. Parliament cannot amend any constitutional provision C. Parliament may amend but cannot destroy basic structure D. State legislatures can amend the Constitution unilaterally
Answer: C. It rejected both absolute unamendability and unlimited amending power.

Q17. The 1973 Kesavananda decision was delivered by a bench of:
A. 5 judges B. 7 judges C. 9 judges D. 13 judges
Answer: D. It was decided by a 13-judge bench, with a narrow 7–6 split on the key limitation.

Q18. Which case is particularly associated with the harmony between Fundamental Rights and Directive Principles?
A. Minerva Mills (1980) B. A. K. Gopalan (1950) C. Keshav Singh (1965) D. Berubari (1960)
Answer: A. Minerva Mills rejected attempts to make amending power unlimited and stressed constitutional balance.

Q19. Which constitutional amendment created the GST constitutional framework?
A. 42nd B. 44th C. 86th D. 101st
Answer: D. The 101st Amendment (2016) established key GST constitutional provisions.

Q20. Which statement about the Constitution (131st Amendment) Bill, 2026 is correct as of 23 October 2026?
A. It became the 131st Amendment Act B. It failed to pass Lok Sabha in April 2026 C. It abolished Article 368 D. It created Telangana
Answer: B. The proposal failed to secure the necessary majority on 17 April 2026; it must not be described as enacted law.

Q21. Which voting threshold does Article 368(2) prescribe in each House for a constitutional amendment Bill?
A. A simple majority of members present and voting at a joint sitting B. A majority of the total membership and at least two-thirds of members present and voting in each House C. Two-thirds of the total membership in each House in every case D. A simple majority in each House followed by ratification by all States
Answer: B. Article 368 requires two simultaneous majorities in each House; there is no joint sitting for this purpose. Option A wrongly substitutes an ordinary-law voting route; C misstates the two-thirds denominator; D wrongly universalises State ratification. [S2]

Q22. Under the proviso to Article 368(2), which proposed change requires ratification by at least half of the State legislatures?
A. Every amendment concerning Fundamental Rights B. An amendment changing a List in the Seventh Schedule C. Every parliamentary statute affecting State administration D. Every amendment to the Preamble, irrespective of its subject
Answer: B. The proviso expressly includes changes to the Seventh Schedule Lists. A and D are not automatic ratification categories; C concerns ordinary statutes rather than the enumerated constitutional amendment subjects. [S2]

Q23. Which statement correctly describes Article 4 in relation to State reorganisation?
A. It makes every Article 3 law an Article 368 amendment B. It gives an affected State legislature a binding veto C. It permits necessary First and Fourth Schedule changes in an Article 3 law without treating that law as an Article 368 amendment D. It requires a separate constitutional amendment before Parliament can alter State boundaries
Answer: C. Article 4(1) authorises necessary Schedule and consequential provisions, and Article 4(2) expressly excludes such laws from the Article 368 amendment procedure. A and D contradict Article 4(2); B confuses the Article 3 consultation requirement with consent. [S2]

Q24. What distinguishes High Court writ jurisdiction under Article 226 from the Supreme Court's Article 32 jurisdiction?
A. Article 226 can be used only to enforce Fundamental Rights B. Article 226 permits writs for Fundamental Rights and for other legal purposes C. Article 226 applies only after the Supreme Court has refused an Article 32 petition D. Article 226 allows High Courts to amend constitutional text
Answer: B. Article 226(1) explicitly extends beyond Part III rights; Article 32 specifically provides a remedy for enforcing Fundamental Rights. A narrows Article 226 incorrectly; C invents an exhaustion prerequisite; D confuses judicial remedies with constitutional amendment. [S2, S14]

Q25. Which statement most accurately describes the Supreme Court's Article 32 jurisdiction?
A. It provides an original remedy for enforcement of Fundamental Rights, including specified writs B. It authorises only advisory opinions requested by the President C. It replaces Article 226 jurisdiction of High Courts D. It authorises the Court to create a new State by writ
Answer: A. Article 32 empowers the Supreme Court to enforce Fundamental Rights by appropriate directions, orders and writs. B confuses it with advisory jurisdiction under Article 143; C contradicts the coexistence of High Court writ powers; D confuses adjudication with the Article 3 legislative route. [S2, S14]

Q26. Which route does Article 169 prescribe for creating or abolishing a State Legislative Council?
A. A qualifying State Assembly resolution followed by Parliamentary law, which Article 169(3) excludes from Article 368 B. A referendum followed by a Presidential ordinance C. An Article 368 amendment ratified by all States D. A unilateral Governor's notification
Answer: A. Article 169 requires a State Assembly resolution supported by a majority of total membership and at least two-thirds present and voting, followed by Parliamentary law. B invents a referendum/ordinance; C wrongly requires Article 368 and universal ratification; D omits the Assembly and Parliament. [S2, S16]

Q27. Which statement accurately describes the constitutional right to property after the 44th Amendment?
A. It remains a Fundamental Right under Article 19(1)(f) B. Article 32 alone creates all property entitlements C.

Property may be taken without legal authority D. Article 300A bars deprivation except by authority of law but is outside Part III
Answer: D. Article 300A supplies the authority-of-law protection outside Part III. A cites the removed Fundamental Right; B confuses a remedy with a substantive right; C contradicts Article 300A. [S2, S16]

Q28. Which reading of Article 13(4) is consistent with the basic-structure doctrine?
A. Every constitutional amendment is immune from judicial review B. Parliament cannot amend Fundamental Rights C. Constitutional amendments become ordinary State laws D. Article 13 does not apply to Article 368 amendments, but the basic-structure limit remains
Answer: D. Article 13(4) concerns Article 13's reach. A incorrectly claims unlimited immunity; B denies the qualified amending power; C mistakes constituent power for ordinary legislation. [S2, S8, S9, S16]

Q29. A House has total membership 600 and 480 members present and voting. What is the minimum affirmative vote under Article 368(2)?
A. 320 B. 301 C. 240 D. 400
Answer: A. The total-membership majority is 301; two-thirds of 480 is 320. Both are required, so 320 controls. B satisfies only one test; C is half of 480; D wrongly takes two-thirds of the total membership. This is a hypothetical, not the April 2026 division. [S2]

Q30. After the required parliamentary votes and any specified State ratification, what does Article 368(2) require?
A. No Presidential assent B. A joint sitting to settle the Bill C. A national referendum D. Presentation to the President, who shall give assent
Answer: D. The constitutional text expressly provides for Presidential assent. A omits it; B invents a joint sitting for amendment Bills; C invents a referendum. [S2, S16]

7. Original mains practice with complete model answers (not authenticated PYQs)

Mains Q1. Trace the constitutional evolution from colonial reforms to popular sovereignty. Why was the 1935 Act both influential and inadequate? (Approx. 230 words)

Introduction / historical setting. India's Constitution inherited administrative institutions from colonial law but rejected the principle that imperial authority was the source of government. The central transformation was from supervised colonial rule to popular sovereignty, universal franchise and constitutional rights.

Stages of evolution. The Regulating Act, 1773 and Pitt's India Act, 1784 established parliamentary supervision over Company administration. The 1858 Act transferred governance to the Crown. The Councils Acts expanded limited consultation without executive accountability. The 1909 reforms introduced separate electorates; the 1919 Act established provincial dyarchy but preserved executive control and restricted voting rights.

The 1935 Act's contribution. It introduced provincial autonomy and a framework of legislative lists, public-service administration and federal institutions. Provincial ministries acquired governing experience. Its proposed federation, however, never operated as envisaged, and governors retained extensive discretionary and emergency powers.

Critical appraisal. Institutional continuity aided administration after independence, but colonial arrangements lacked democratic legitimacy and social inclusion. The Constituent Assembly transformed the source of authority: the people, not the Crown, became sovereign. The Constitution added enforceable rights, an independent judiciary, parliamentary accountability and universal adult franchise. The 1935 Act was therefore a technical resource, not a democratic blueprint.

Conclusion. India's constitutional achievement was selective inheritance: retaining workable institutions while changing their legitimacy, purpose and accountability. The same distinction remains useful when evaluating executive power in contemporary governance.

Mains Q2. Assess the role of the Drafting Committee without overlooking the Constituent Assembly and B. N. Rau. (Approx. 220 words)

Introduction / objective. The Drafting Committee converted constitutional principles into a coherent legal instrument. Its importance was substantial, but it did not possess sole constituent authority.

Institutional background. The Constituent Assembly appointed the seven-member Committee on 29 August 1947, chaired by B. R. Ambedkar. Its original members included Alladi Krishnaswami Ayyar, N. Gopalaswami Ayyangar, K. M. Munshi, Syed Mohammad Saadulla, B. L. Mitter and D. P. Khaitan. Constitutional Adviser B. N. Rau separately prepared comparative material and an initial working draft.

Core contributions. The Committee translated decisions on rights, Union–State relations, parliamentary government and courts into workable Articles. It reconciled competing provisions, specified institutional powers and remedies, and presented draft text for public and Assembly scrutiny. Ambedkar's leadership combined legal skill with a clear concern for social democracy.

Critical appraisal. Assembly members questioned whether an expert committee might pre-empt unresolved political decisions. The debates affirmed that the full Assembly could alter the Committee's proposals. Neither crediting Ambedkar as sole author nor treating him as a mere editor accurately captures the record. Committees under Nehru and Patel, other members, Rau and the Assembly all shaped the final document.

Conclusion. Constitutional authorship was collective and institutionally layered. Expert drafting supplied coherence; the Assembly's deliberation supplied final political authority. Both were essential to constitutional legitimacy.

Mains Q3. Explain how justice, liberty, equality and fraternity guide constitutional governance. Is the Preamble independently enforceable? (Approx. 220 words)

Introduction / constitutional philosophy. The Preamble expresses popular sovereignty and the Republic's normative purposes. It is a guide to understanding constitutional government, not merely a ceremonial introduction.

Objectives and meaning. Justice includes social, economic and political dimensions; liberty protects thought, expression, belief, faith and worship; equality concerns status and opportunity; fraternity connects individual dignity with a common civic community. These values are interdependent. For instance, formal freedom is inadequate if caste or gender exclusion blocks effective participation, while redistributive programmes must respect individual rights and lawful procedures.

Legal mechanisms. Fundamental Rights provide enforceable restraints and remedies. Directive Principles guide welfare-oriented lawmaking, and institutions such as courts and elected legislatures mediate conflicts. The 42nd Amendment added the express terms socialist, secular and integrity in 1976, although earlier provisions already embodied religious freedom and social-justice commitments.

Critical appraisal. The Preamble forms part of the Constitution and assists interpretation, including basic-structure analysis. It is not a stand-alone grant of power and cannot override operative Articles. Judicial reliance on constitutional values must therefore be linked to legal text and reasoned standards, rather than free-floating moral preference.

Telangana / conclusion. Regional demands for political voice and fair opportunity can be evaluated against justice and democracy, but Telangana's formation legally proceeded under Articles 3 and 4. Constitutional ideals must be connected to valid legal mechanisms and measurable outcomes.

Mains Q4. Is the basic-structure doctrine a necessary protection or judicial overreach? Discuss with case law. (Approx. 235 words)

Introduction / central issue. Article 368 enables constitutional amendment, yet an unlimited power could permit a temporary majority to abolish elections, judicial review or future constitutional change. Basic structure seeks to prevent that paradox.

Judicial development. Shankari Prasad (1951) accepted a broad amending power; Golaknath (1967) restricted amendment of Fundamental Rights. In Kesavananda Bharati (1973), a 13-judge bench held that Parliament may amend any provision but cannot destroy the Constitution's basic structure. Later cases identified and applied principles such as democracy, judicial review, federalism and limited amending power.

Important applications. Indira Nehru Gandhi v. Raj Narain (1975) addressed insulation of an election dispute from judicial scrutiny. Minerva Mills (1980) invalidated attempts to confer unlimited amending power and emphasised harmony between Fundamental Rights and Directive Principles. The NJAC judgment (2015) protected judicial independence but also provoked criticism about appointments accountability.

Arguments in favour. The doctrine protects constitutional continuity, opposition rights and independent adjudication when ordinary political safeguards may fail. It preserves the conditions of democratic alternation.

Critical appraisal. Its content is not exhaustively enumerated in the text, leaving courts significant discretion and creating uncertainty. Judges must distinguish genuine structural injury from disagreement with policy design.

Conclusion. The doctrine is most defensible as a narrow safeguard against constitutional destruction, accompanied by transparent reasoning and judicial restraint—not as a licence for courts to govern in place of elected institutions.

Mains Q5. Explain Article 368 and distinguish constitutional amendment from Telangana's formation in 2014. (Approx. 225 words)

Introduction / problem. The Constitution combines adaptability with entrenched procedures. A change in territory, ordinary legislation and formal amendment are not legally interchangeable.

Article 368 procedure. An amendment Bill may originate in either House. Each House must approve it by a majority of its total membership and at least two-thirds of members present and voting. There is no joint sitting. Specified federal changes additionally require ratification by legislatures of not less than half the States. Presidential assent follows the constitutionally completed process.

Substantive limit. A formally successful amendment remains subject to the basic-structure doctrine established in Kesavananda Bharati. Thus procedure and constitutional identity are separate checks.

Telangana comparison. Parliament created Telangana through the Andhra Pradesh Reorganisation Act, 2014 under Article 3, read with Article 4. Article 3 requires presidential recommendation and referral of the proposal to the affected State legislature for views; those views are not binding. Article 4 allows consequential First and Fourth Schedule changes and expressly says such laws are not Article 368 amendments.

Critical appraisal. The ordinary-law route permits territorial adaptation but creates a legitimate debate over the autonomy of affected States. Article 368's higher threshold protects structural constitutional bargains but can also make necessary reforms difficult. The failed proposed 131st Amendment Bill in April 2026 illustrates that an ordinary political majority may be insufficient.

Conclusion. Correct constitutional analysis begins by identifying the specific Article and procedure. Telangana demonstrates flexible federalism, not a bypass of Article 368.

Mains Q6. Examine the salient features of India's Constitution as a balance between democratic participation and effective government. (Approx. 225 words)

Introduction / context. India's Constitution had to secure liberty and representation while governing a vast, unequal and newly independent society. Its distinctive features reflect negotiated trade-offs rather than a single imported model.

Institutional design. Parliamentary government makes the executive answerable to elected legislatures. Federal lists distribute authority between Union and States, but the Union retains strong coordinating and emergency powers. Independent courts enforce constitutional supremacy; Fundamental Rights protect persons against unlawful State action. Directive Principles guide welfare policy, while universal adult franchise provides equal formal political membership.

Decentralisation and inclusion. The 73rd and 74th Amendments created constitutional frameworks for local bodies, representation and elections. Reservations and equality provisions address historical exclusion. Yet electoral participation is not equivalent to effective access to public services or decision-making power.

Critical appraisal. Strong Union institutions can coordinate development and respond to crises, but may diminish State policy space. Parliamentary majorities can enable stable government but weaken scrutiny when party discipline overwhelms committees and opposition. Judicial review checks arbitrary action, yet must remain accountable through reasoned decisions. Local bodies require funds, staff and real functions, not elections alone.

Telangana example. Statehood under Articles 3–4 demonstrates territorial adaptability; subsequent fiscal and administrative relations illustrate continuing federal bargaining. Gram Panchayat and municipal capacity shows whether decentralisation becomes real.

Conclusion. Constitutional success depends less on labels such as 'federal' or 'parliamentary' than on functioning checks, rights, accountable finance and meaningful citizen participation.

8. Authoritative source register and internal checks

The source register lists documents consulted for legal or historical propositions. A source entry is **not** a claim that every passage of this draft has undergone full scholarly fact-checking. The official notification governs syllabus wording; the Constitution and statute govern legal text; judgments govern case holdings; explanatory websites do not override primary law. Source links are supplied without page-number citations in student-facing prose.

- **[S1] Constituent Assembly Debates, 29 August 1947 (digitised primary proceedings):** https://www.constitutionofindia.net/debates/29-aug-1947/ — verifies the resolution appointing the Drafting Committee and its original members.
- **[S2] Legislative Department, Government of India, Constitution of India (official English text):** https://www.legislative.gov.in/static/uploads/2025/07/359f70a69695affb9d72f8393102bd2e.pdf — Articles 1, 3, 4, 12–35, 36–51, 51A, 246 and 368, subject to official subsequent amendments.
- **[S3] Constitution of India archive, stages of constitution-making:** https://www.constitutionofindia.net/stages-of-constitution-making/ — chronology and document provenance.
- **[S4] Constituent Assembly debates, appointment debate and committee limits:** https://www.constitutionofindia.net/blog/this-month-in-constitution-making-august-1947-constituent-assembly-appoints-drafting-committee/ — context for expert committee versus Assembly authority.
- **[S5] National Archives of India, Constitution collection:** https://nationalarchives.nic.in/en/constitution-india — primary constitutional record.
- **[S6] Legislative Department, official amendment collection:** https://www.legislative.gov.in/amendments-to-the-constitution — source for amendment enactments and dates.

- **[S7] India Code, Andhra Pradesh Reorganisation Act, 2014:** https://www.indiacode.nic.in/bitstream/123456789/2123/1/A2014-6E.pdf — sections 3, 10–12 and the legal route to Telangana.
- **[S8] Supreme Court of India, basic-structure discussion in a reported judgment:** https://api.sci.gov.in/judgment/judis/28469.pdf — judicial account of Kesavananda and Article 368 limits.
- **[S9] Kesavananda Bharati v. State of Kerala, 24 April 1973:** authoritative case citation (1973) 4 SCC 225; verify the original reported opinions for detailed ratio and separate opinions.
- **[S10] PRS Legislative Research, summary of women's reservation constitutional proposal:** https://prsindia.org/billtrack/prs-products/prs-bill-summary-4251 — describes the 2023 amendment's census/delimitation-linked mechanism; distinguish Bill stage from enacted 106th Amendment.
- **[S11] Akashvani News on AIR, 18 April 2026:** https://newsonair.gov.in/hi/131st-constitutional-amendment-bill-not-passed-lok-sabha-vote-count/ — verifies 131st Amendment Bill's failure on 17 April 2026.
- **[S12] PRS Legislative Research, April 2026 constitutional amendment analysis:** https://prsindia.org/billtrack/prs-products/issues-for-consideration-1776322954 — context of proposed 2026 delimitation changes.
- **[S13] TGPSC Group I Notification 02/2024 (Commission-issued document, mirrored PDF):** https://www.careerpower.in/blog/wp-content/uploads/2024/02/19195508/NOTIFICATION_NO_02-2024_Group-I_Services.pdf — exact Paper III Unit II Topic 1 wording; a mirror of the original notification, not a Commission-hosted URL.
- **[S15] News On AIR, 18 April 2026:** https://newsonair.gov.in/hi/131st-constitutional-amendment-bill-not-passed-lok-sabha-vote-count/ — directly viewed; reports failure and 298 for/230 against but also 489 present and a 326-vote threshold. These figures conflict. Parliamentary division record not retrieved.
- **[S16] Legislative Department, Constitution of India (as at 11 November 2025):** https://www.legislative.gov.in/static/uploads/2025/07/359f70a69695affb9d72f8393102bd2e.pdf — directly checked Articles 13(4), 169, 300A and 368(2). Not a claim that every subsequent 2026 constitutional update has been authenticated.

Internal accuracy gates performed: syllabus clause transcribed from the 02/2024 notification; Article 3 versus Article 368 route explicitly distinguished; 2026 131st Bill labelled unsuccessful rather than enacted; original questions never called official PYQs; major case holdings separated from their critical interpretations; original-versus-current Constitution counts distinguished; no fabricated page-number citations. **Outstanding:** line-by-line expert academic audit, comprehensive validation of every secondary historical claim, current consolidated amendment-text check beyond the cited edition, and independent checking against authenticated TGPSC question papers.